



OSMANIA UNIVERSITY

LL.B. (3-YDC)

Semester V

Complete Exam Notes

For **LL.B. (General)** and **LL.B. (Honours)** students

Full syllabus · Simple English · Latest cases · Questions with answers

PAPERS IN THIS BOOK

Paper I	Law of Evidence (BSA 2023)
Paper II	Civil Procedure Code and Law of Limitation
Paper III	BNSS, Juvenile Justice and Probation of Offenders
Paper IV	Law of Taxation

INSIDE EVERY PAPER

- ◆ **Whole syllabus**, unit by unit, topic by topic
- ◆ Written in **simple, plain English** with tables
- ◆ **Sections and leading cases** for every topic
- ◆ **Latest cases** and recent amendments as examples
- ◆ **Points to remember** after every unit
- ◆ **Quick revision tables** for the last day
- ◆ **Short answers, essay guides and solved problems** in the exam pattern

About This Book

This book contains complete exam notes for **Semester V** of the **LL.B. (3-YDC)** course of **Osmania University**. All the papers of the semester are bound together in one book, with one set of page numbers.

Who Can Use This Book

Course	How to use it
LL.B. (Honours)	Follows the LL.B. (Hons) scheme of the semester – every paper, in the same order as the syllabus.
LL.B. (General)	The subjects that are common to the General course are covered by the same notes. Please match the units with your own syllabus copy; extra Honours topics can be skipped.

What Every Paper Contains

1. **Unit-wise notes** – every topic in the syllabus, in the same order as the syllabus.
2. **Simple, plain English** – short sentences, tables and easy rules.
3. **Sections and leading cases** – with the **latest cases and amendments** as examples.
4. **Points to remember** at the end of each unit.
5. **Quick revision tables** – sections, comparisons and recent cases for the last day.
6. **Questions and answers** – short answers, essay answer guides and solved problems in the exam pattern.

How to Use This Book for the Exam

1. Read each unit once fully. Mark the sections and the case names.
2. Learn the **Points to Remember** – they are ready-made short answers.
3. Practise the **essay answer guides** by writing each answer in your own words.
4. Solve the **problem questions** in the order: Facts – Issue – Law – Application – Conclusion.
5. On the day before the exam, read only the **Quick Revision** tables.

Please Note

This book is an **independent study aid**. It is not an official publication of Osmania University. The questions are **model questions** framed on the syllabus and the usual exam pattern. The law changes often – please check **recent amendments and recent cases** with the bare Act or an official source before quoting them. The book is for study purposes only and is not legal advice.

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PAPER I

Law of Evidence (BSA 2023)

OSMANIA UNIVERSITY

LL.B. (3-YDC)

SEMESTER V

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- ◆ Unit-III: Judgments, Opinions, Proof, Oral and Documentary Evidence
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Unit-I: Introduction, Interpretation Clause and Relevancy of Facts

Introduction to the Law of Evidence

1. What is the Law of Evidence?

Every case – civil or criminal – turns on **facts**. A says B stabbed him; B says he was in another town. The court was not present at the scene. It must **find out the truth** from **witnesses, documents and things** placed before it. The **law of evidence** is the set of rules which tells the court:

1. **What facts** may be proved (**relevancy**);
2. **What kind of proof** may be given of those facts (**oral, documentary, electronic**);
3. **Who** must prove them and **how** (burden of proof; examination of witnesses).

It is a branch of **adjective (procedural) law** – it does not create rights; it helps to **enforce** them. It is the **lex fori** – a court applies its own law of evidence.

Easy rule: Substantive law tells you what must be proved (e.g., murder under BNS S. 101). The law of evidence tells you how to prove it.

2. From the Indian Evidence Act, 1872 to the Bharatiya Sakshya Adhiniyam, 2023

Point	Indian Evidence Act, 1872 (IEA)	Bharatiya Sakshya Adhiniyam, 2023 (BSA)
Drafted by	Sir James Fitzjames Stephen	Enacted by Parliament in December 2023 as part of the three new criminal laws
In force	1 September 1872	1 July 2024
Sections	167 sections, 11 chapters	170 sections, 12 chapters, 4 parts
Applies to	Judicial proceedings in courts; not to affidavits or arbitrators; not to courts-martial under the Army, Navy and Air Force Acts	All judicial proceedings in or before any Court, including courts-martial; not to affidavits or arbitrators (S. 1(2))

Savings: By the repeal clause (S. 170), **trials, inquiries, appeals and proceedings pending on 1 July 2024** continue under the **old Act**. So for some years **both Acts** will be used in courts – and the examiner expects **both section numbers**.

3. Structure of the BSA

Part	Chapters	Subject	Sections
I	Ch. I	Preliminary – short title, definitions	1–2
II	Ch. II	Relevancy of facts	3–50

Part	Chapters	Subject	Sections
III	Ch. III–VI	Proof – facts which need not be proved; oral evidence; documentary evidence; exclusion of oral by documentary evidence	51–103
IV	Ch. VII–XII	Production and effect of evidence – burden of proof; estoppel; witnesses; examination of witnesses; improper admission and rejection; repeal	104–170

Bharatiya Sakshya Adhiniyam, 2023 – Salient Features

1. General Features (carried over from the 1872 Act)

1. It is a **code** on the subject of evidence – complete in itself, though not exhaustive.
2. It applies **equally to civil and criminal** proceedings (with a few special rules for each).
3. It follows the **best evidence rule** – oral evidence must be **direct**; documents must be proved by **primary evidence**.
4. **Hearsay is excluded**, subject to stated exceptions.
5. Evidence may be given **only of facts in issue and relevant facts** (S. 3) – nothing else.
6. It is the *lex fori*.
7. It contains **illustrations**, which are guides to the meaning of the sections.

2. New Features Introduced by the BSA

No.	Change	Provision
1	"Document" includes electronic and digital records – emails, server logs, documents on computers, laptops and smartphones, messages, websites, locational evidence , voice mail	S. 2(1)(d)
2	"Evidence" includes statements given electronically – witnesses, accused and experts may depose through audio-video electronic means	S. 2(1)(e)
3	Electronic records as primary evidence – new Explanations: each stored file, each simultaneous storage and a record produced from proper custody is primary evidence	S. 57
4	Secondary evidence widened – oral admissions, written admissions, and evidence of a skilled person who has examined a bulky document	S. 58
5	Electronic record has the same legal effect, validity and enforceability as a paper document	S. 61 (new)
6	Certificate for electronic evidence – to be signed by the person in charge of the device and an expert , in the form in the Schedule ; covers "communication devices" and semiconductor memory	S. 63
7	Confession provisions rearranged – old Ss. 24, 28, 29 merged into S. 22 ; old Ss. 25, 26, 27 merged into S. 23 ; the word "coercion" added	Ss. 22, 23
8	Joint trial – a trial of several persons held in the absence of an absconding accused is deemed a joint trial for using confessions against co-accused	S. 24, Explanation II

No.	Change	Provision
9	Experts – opinion on "any other field" is now relevant, besides foreign law, science, art, handwriting and finger impressions	S. 39
10	Accomplice – a conviction is not illegal if it proceeds on the corroborated testimony of an accomplice	S. 138
11	Privilege – no court shall require any communication between Ministers and the President to be produced	S. 165
12	Modern language – "advocate" for vakil, pleader, barrister, attorney; "person of unsound mind" for lunatic; removal of references to the British Crown, London Gazette, Privy Council, Her Majesty's dominions and to juries	Throughout
13	Deleted provisions – old S. 82 (documents admissible in England), S. 88 (telegraphic messages), S. 113 (cession of territory), S. 166 (jury)	–

What has not changed: The **basic principles** – relevancy, hearsay, burden of proof, estoppel, privilege, examination of witnesses – are the **same**. The **case law under the 1872 Act continues to apply**.

3. Most-Used Section Numbers – Old and New

Subject	IEA, 1872	BSA, 2023
Definitions	S. 3, 4	S. 2
Evidence only of facts in issue and relevant facts	S. 5	S. 3
Res gestae	S. 6	S. 4
Motive, preparation, conduct	S. 8	S. 6
Conspiracy	S. 10	S. 8
Facts not otherwise relevant (alibi)	S. 11	S. 9
State of mind	S. 14	S. 12
Admissions	Ss. 17–23, 31	Ss. 15–21, 25
Confessions	Ss. 24–30	Ss. 22–24
Dying declaration	S. 32(1)	S. 26(a)
Expert opinion	S. 45	S. 39
Electronic records	Ss. 65A, 65B	Ss. 62, 63
Exclusion of oral evidence	Ss. 91, 92	Ss. 94, 95
Burden of proof	Ss. 101–106	Ss. 104–109
Dowry death presumption	S. 113B	S. 118
Court may presume	S. 114	S. 119
Estoppel	S. 115	S. 121

Subject	IEA, 1872	BSA, 2023
Who may testify	S. 118	S. 124
Accomplice	S. 133	S. 138
Hostile witness	S. 154	S. 157

Meaning and Kinds of Evidence

1. Meaning

The word "evidence" comes from the Latin *evidera* – "to show clearly, to prove".

S. 2(1)(e), BSA (old S. 3): "Evidence" means and includes –

1. **Oral evidence** – all statements, including statements given electronically, which the Court **permits or requires** to be made before it by **witnesses** in relation to matters of fact under inquiry; and
2. **Documentary evidence** – all documents, including electronic or digital records, produced for the inspection of the Court.

Points:

1. The definition is **not exhaustive** – things such as **material objects** (the weapon, blood-stained clothes), the **demeanour** of witnesses, **local inspection** by the judge and the **statement of the accused** under BNSS S. 351 are not within it, yet courts take them into account as "**matters before the court**".
2. A **confession of a co-accused** is not "evidence" in the strict sense – it is not given on oath or tested by cross-examination (*Kashmira Singh v State of M.P.*, 1952).

2. Kinds of Evidence

Kind	Meaning	Example
Oral evidence	Statements made by witnesses before the court	An eye-witness says, "I saw A stab B"
Documentary evidence	Documents and electronic records produced before the court	A sale deed; CCTV footage; WhatsApp chat
Primary evidence	The document itself (S. 57)	The original will
Secondary evidence	Copies and other substitutes allowed by law (S. 58)	A certified copy; a photocopy
Direct evidence	Evidence which directly proves the fact in issue	An eye-witness to the murder
Circumstantial (indirect) evidence	Evidence of other facts from which the fact in issue may be inferred	A was seen running from B's house with a blood-stained knife
Real evidence	Material objects shown to the court	The weapon; a photograph

Kind	Meaning	Example
Hearsay evidence	What the witness heard from another – not what he himself perceived	"C told me that A stabbed B" – generally inadmissible
Judicial evidence	Evidence received by a court – e.g., a confession before a Magistrate	–
Non-judicial (extra-judicial) evidence	A confession made outside court to a friend	–
Substantive evidence	Evidence on which a finding can be based by itself	Dying declaration; testimony in court
Corroborative evidence	Evidence which only supports other evidence	FIR; test identification parade; statement under BNSS S. 183
Conclusive evidence	Evidence which the law does not allow to be contradicted	Birth during a valid marriage (S. 116)

3. Direct and Circumstantial Evidence

"Men may lie, but circumstances do not." A conviction **can be based solely on circumstantial evidence** – but only if the chain is complete.

Sharad Birdhichand Sarda v State of Maharashtra (1984, SC) – the "**five golden principles**" (*panchsheel*) of circumstantial evidence:

1. The circumstances from which the conclusion of guilt is drawn must be **fully established** ("must be", not "may be");
2. The facts so established must be **consistent only with the hypothesis of the guilt** of the accused;
3. The circumstances must be of a **conclusive nature and tendency**;
4. They must **exclude every possible hypothesis except the one to be proved**; and
5. There must be a **chain of evidence so complete** as not to leave any reasonable ground for a conclusion consistent with innocence.

Earlier – **Hanumant v State of Madhya Pradesh (1952, SC)**.

4. The Rule against Hearsay

Hearsay is evidence of a fact **not actually perceived by the witness** but **reported to him by another**. It is excluded because (i) the original speaker is **not on oath**; (ii) he is **not cross-examined**; (iii) truth weakens with repetition; (iv) it opens the door to fraud. The rule is found in **S. 55 (old S. 60)** – oral evidence must be **direct**.

Main exceptions: res gestae (S. 4); admissions and confessions (Ss. 15–25); **dying declarations** and other statements of persons who cannot be called (S. 26); evidence in former proceedings (S. 27); entries in public records (S. 29); expert opinions in treatises (S. 55 proviso).

Interpretation Clause

S. 2(1), BSA (old Ss. 3 and 4) defines the basic terms.

1. Court – S. 2(1)(a)

"Court" includes all **Judges and Magistrates**, and all persons, **except arbitrators, legally authorised to take evidence**. (Inclusive definition – covers tribunals and commissioners authorised to record evidence.)

2. Fact – S. 2(1)(f)

"Fact" means and includes –

1. any **thing, state of things, or relation of things**, capable of being **perceived by the senses (physical / external facts)**; and
2. any **mental condition** of which any person is **conscious (psychological / internal facts)**.

Illustration	Kind
That there are certain objects arranged in a certain order in a certain place	Physical
That a man heard or saw something; that a man said certain words	Physical
That a man holds a certain opinion , has a certain intention , acts in good faith or fraudulently , or has a certain reputation	Psychological

3. Facts in Issue – S. 2(1)(g)

"Facts in issue" means and includes any fact from which, either by itself or in connection with other facts, the **existence, non-existence, nature or extent of any right, liability or disability**, asserted or denied in any suit or proceeding, **necessarily follows**.

In simple words: the facts which the **plaintiff must prove to win**, and which the **defendant denies** – the **matters in dispute**. In a civil suit they are found in the **issues** framed (CPC, O. 14); in a criminal case, in the **charge**.

Illustration: A is accused of the murder of B. The facts in issue may be – that **A caused B's death**; that A **intended** to cause B's death; that A had received **grave and sudden provocation** from B; that A was, by **unsoundness of mind**, incapable of knowing the nature of the act.

4. Relevant – S. 2(1)(k)

A fact is said to be **relevant** to another when it is **connected with the other in any of the ways referred to in the provisions of this Adhiniyam relating to the relevancy of facts** (Ss. 4–50).

So "relevant" has a **legal** meaning – a fact is relevant **only if a section of the Act makes it so**.

Point	Fact in issue	Relevant fact
Meaning	The main fact in dispute – a necessary ingredient of the right or liability	A fact which makes the fact in issue probable or improbable
Other name	<i>Factum probandum</i> (fact to be proved)	<i>Factum probans</i> (fact which proves)

Point	Fact in issue	Relevant fact
Source	Substantive law and pleadings/charge	Ss. 4–50 of the BSA
Example	Did A kill B?	A's motive; A's threats; A's flight; the knife found with A

5. Document – S. 2(1)(d)

"Document" means any **matter expressed or described or otherwise recorded** upon any substance by means of **letters, figures or marks or any other means**, or by more than one of those means, **intended to be used, or which may be used, for the purpose of recording that matter**, and includes **electronic and digital records**.

Illustrations: a **writing**; words **printed, lithographed or photographed**; a **map or plan**; an **inscription on a metal plate or stone**; a **caricature**; and (new) an **electronic record on emails, server logs, documents on computers, laptop or smartphone, messages, websites, locational evidence and voice mail messages stored on digital devices**.

Cases: A **tape-recorded conversation** is a document (*R.M. Malkani v State of Maharashtra*, 1973; *Ziyauddin Burhanuddin Bukhari v Brijmohan Ramdass Mehra*, 1976); the **contents of a memory card or pen drive** are a document (*P. Gopalkrishnan v State of Kerala*, 2019).

6. Proved, Disproved and Not Proved

Term	Definition
Proved – S. 2(1)(j)	A fact is said to be proved when, after considering the matters before it , the Court either believes it to exist , or considers its existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it exists
Disproved – S. 2(1)(c)	When, after considering the matters before it, the Court either believes that it does not exist , or considers its non-existence so probable that a prudent man ought to act upon the supposition that it does not exist
Not proved – S. 2(1)(i)	A fact is not proved when it is neither proved nor disproved – the middle position, where the evidence is insufficient either way

Points:

1. The test is that of a **prudent man** – not absolute certainty, but a **high degree of probability**.
2. The words "**matters before it**" are wider than "evidence" – they include material objects, demeanour, admissions and the result of local inspection.
3. **Standard of proof** – the definition is the same for civil and criminal cases, but its application differs:

Point	Civil cases	Criminal cases
Standard	Preponderance of probabilities	Proof beyond reasonable doubt

Point	Civil cases	Criminal cases
Who bears the burden	The party who asserts	The prosecution – always (<i>Woolmington v DPP</i> , 1935); the accused need only raise a reasonable doubt or prove an exception on probabilities
Benefit of doubt	No such rule	Goes to the accused (<i>Kali Ram v State of H.P.</i> , 1973)

4. "Not proved" does not mean false – it means the party with the burden has **failed**.

7. May Presume, Shall Presume and Conclusive Proof

A **presumption** is an **inference** which the court draws about the existence of one fact **from the proof of another fact**. It saves time and shifts the burden.

Term	Definition	Nature	Examples
May presume – S. 2(1)(h)	The Court may either regard the fact as proved , unless and until it is disproved, or may call for proof of it	Discretionary; rebuttable – presumption of fact	S. 119 (old 114) – possession of stolen goods soon after theft; S. 117 – abetment of suicide by a married woman; Ss. 88–93 – thirty-year-old documents, electronic messages
Shall presume – S. 2(1)(l)	The Court shall regard the fact as proved , unless and until it is disproved	Mandatory; but rebuttable – presumption of law	S. 118 (old 113B) – dowry death; S. 120 – absence of consent in certain rape cases; Ss. 78–85 – certified copies, gazettes, powers of attorney; S. 139, NI Act
Conclusive proof – S. 2(1)(b)	When one fact is declared to be conclusive proof of another, the Court shall, on proof of the one fact, regard the other as proved and shall not allow evidence to be given to disprove it	Mandatory and irrebuttable	S. 116 (old 112) – birth during a valid marriage is conclusive proof of legitimacy; S. 35 (old 41) – judgments in probate, matrimonial, admiralty and insolvency jurisdiction; BNS S. 20 – a child under seven cannot commit an offence

Easy rule: May presume = court's choice, can be rebutted. Shall presume = court must, can be rebutted. Conclusive proof = court must, cannot be rebutted.

Distinction between Relevancy and Admissibility

1. Meaning

- **Relevancy** is based on **logic and probability** – a fact is relevant if it is **connected** with the fact in issue in one of the ways described in Ss. 4–50.
- **Admissibility** is a matter of **law** – a fact is admissible if the law **allows it to be given in evidence**.

S. 3 (old S. 5): Evidence may be given in any suit or proceeding of the existence or non-existence of **every fact in issue** and of such **other facts as are declared to be relevant, and of no others**.

2. Not Co-extensive

All admissible evidence is relevant, but all relevant evidence is not admissible. As the Supreme Court said in *Ram Bihari Yadav v State of Bihar (1998)*, the terms "relevancy" and "admissibility" are often used as synonyms, but their legal implications are distinct – facts which are relevant may not be admissible (e.g., a communication between spouses or between advocate and client), and facts which are admissible may not be logically relevant (e.g., questions in cross-examination to test credit).

Point	Relevancy	Admissibility
Basis	Logic and human experience	Law
Provisions	Ss. 4–50	Other parts of the Act – Ss. 51 onwards; S. 141 (judge decides admissibility)
Question	Is the fact connected with the fact in issue?	May the fact be received in evidence?
Scope	Wider in logic	Narrower – subject to exclusionary rules
Example of relevant but inadmissible	A confession to a police officer; a privileged communication; hearsay; an unstamped document	–
Example of admissible though not strictly relevant	–	Previous statements to contradict a witness (S. 148); character questions in cross-examination (S. 149)

3. Illegally Obtained Evidence

In India, **relevant evidence is admissible even if obtained illegally**, unless a statute or the Constitution forbids it – *Pooran Mal v Director of Inspection (1974, SC)* (illegal search); *R.M. Malkani v State of Maharashtra (1973, SC)* (tape-recording). But evidence obtained by **compulsion** from the accused is barred by **Art. 20(3)** – *Selvi v State of Karnataka (2010)* (narco-analysis, polygraph and brain-mapping without consent).

Doctrine of Res Gestae

1. The Section

S. 4, BSA (old S. 6): Facts which, though not in issue, are so connected with a fact in issue or a relevant fact as to form part of the same transaction, are relevant, whether they occurred at the same time and place or at different times and places.

"*Res gestae*" (Latin) means "**things done**" – the acts, words and circumstances which **accompany and explain** the main event. The Act does not use the phrase; it speaks of facts forming "**part of the same transaction**".

2. Illustrations to the Section

1. A is accused of the murder of B by beating him. **Whatever was said or done by A or B or the bystanders at the beating, or so shortly before or after it as to form part of the transaction**, is a relevant fact.
2. A is accused of waging war by taking part in an armed insurrection in which property is destroyed, troops are attacked and jails are broken open. The occurrence of these facts is relevant as forming **part of the general transaction**, though A may not have been present at all of them.
3. A sues B for a libel contained in a letter forming part of a correspondence. **Letters between the parties** relating to the subject, forming part of the correspondence, are relevant.
4. The question is whether goods ordered from B were delivered to A. The goods were delivered to **several intermediate persons successively** – each delivery is a relevant fact.

3. Why it is an Exception to Hearsay

Statements of **bystanders** are hearsay. They are admitted because they are made **spontaneously, under the pressure of the event**, with **no time to concoct** a story – they are **part of the event itself**.

4. Tests

Test	Explanation
Same transaction	The fact or statement must be part of the transaction in issue – connected by proximity of time, unity of place, continuity of action and community of purpose
Contemporaneous and spontaneous	A statement must be made during or immediately before or after the act, so that there is no opportunity for fabrication
Explains the act	It must relate to and explain the main fact – not be a mere narrative of a past event
By whom	By the victim, the accused or a bystander who witnessed the event

5. Leading Cases

Case	Holding
<i>R v Bedingfield (1879)</i>	A woman came out of a room with her throat cut and said, "See what Bedingfield has done to me." The statement was excluded – it was made after the act was over. (A very strict view, later disapproved.)
<i>R v Foster (1834)</i>	A bystander's statement about the cause of the accident, made immediately after it, was admitted.
<i>Ratten v The Queen (1972, PC)</i>	The accused said his wife was shot accidentally. A telephone operator said that minutes before the shooting a woman called from the house, sobbing and hysterical , saying "Get me the police, please". Held – admissible . The test is not the uncertain one of "same transaction", but whether the statement was made in circumstances of spontaneity and involvement such that the possibility of concoction can be disregarded .

Case	Holding
<i>R v Andrews (1987, HL)</i>	Statement by a stabbing victim to the police minutes after the attack admitted – the judge asks, "can the possibility of concoction or distortion be disregarded?"
<i>Gentela Vijayavardhan Rao v State of A.P. (1996, SC)</i>	A bus was set on fire near Chilakaluripet, killing many passengers. Statements of injured victims recorded by a Magistrate some time later in hospital were not res gestae – there was an appreciable interval ; they were not part of the same transaction. (They could be used in other ways.) The essence of the doctrine is that the statement must be contemporaneous with the act or immediately after it.
<i>Sukhar v State of U.P. (1999, SC)</i>	A witness who reached the spot on hearing the gunshot was told by the injured that the accused had shot him. Held – admissible under S. 6 ; the statement and the act of firing were part of the same transaction .
<i>Vasa Chandrasekhar Rao v Ponna Satyanarayana (2000, SC)</i>	A statement by the accused's father on the telephone that his son had killed the deceased was not admissible – it was not shown to have been made at the time of or immediately after the occurrence.
<i>Krishan Kumar Malik v State of Haryana (2011, SC)</i>	In a rape case, statements of the victim to her mother and sister immediately after the event would be res gestae – they should have been examined.

6. Related Sections

Section	Rule	Illustration
S. 5 (old 7)	Facts which are the occasion, cause or effect of facts in issue or relevant facts, or which constitute the state of things under which they happened, or afforded an opportunity for them	Marks on the ground produced by a struggle at the place of murder; that B went to a fair with money and showed it to others
S. 7 (old 9)	Facts necessary to explain or introduce a fact in issue or relevant fact, or which support or rebut an inference, or establish the identity of any person or thing, or fix the time or place	Test identification parades ; absconding soon after the crime

Test identification parade (TIP): held under S. 7 during investigation so that witnesses can identify the suspect among others. It is **not substantive evidence** – the substantive evidence is **identification in court**; the TIP only **corroborates** it (*Matru v State of U.P.*, 1971; *Malkhansingh v State of M.P.*, 2003).

Easy rule – res gestae: Words and acts so close to the main event that they are part of it – spontaneous, no time to make up a story. *Bedingfield* (too strict) → *Ratten* (spontaneity test) → *Gentela Rao* (delay breaks the chain).

Motive, Preparation and Conduct

S. 6, BSA (old S. 8).

1. Motive

Any fact is relevant which shows or constitutes a motive for any fact in issue or relevant fact.

Motive is the **reason which moves a person to act** – revenge, greed, jealousy, fear. It is different from **intention** (the immediate aim of the act).

Illustrations: A is tried for the murder of B. The fact that **B knew that A had murdered C**, and that B had tried to **extort money** from A by threatening to make it public, is relevant. A sues B on a bond; the fact that **B needed money** for a particular purpose at the time is relevant.

Evidentiary value:

1. Motive is **relevant but not essential** – where there is **clear direct evidence** (eye-witnesses), absence of proof of motive is **immaterial**.
2. In a case based on **circumstantial evidence**, motive is an **important link**; its absence weighs in favour of the accused.
3. Motive **alone** cannot convict – it only raises suspicion.

2. Preparation

Any fact which shows or constitutes preparation for any fact in issue or relevant fact is relevant.

Preparation means **arranging the means** to commit an act. **Illustration:** A is tried for the murder of B by poison. The fact that, before B's death, **A procured poison similar to that which was administered** to B is relevant.

Preparation is generally **not punishable** (except, e.g., preparation for dacoity or waging war), but it is **evidence of intention**.

3. Conduct

The **conduct of any party or his agent** to a suit or proceeding, in reference to the suit or to any fact in issue or relevant fact, and the **conduct of any person an offence against whom is the subject of the proceeding**, is relevant, if it **influences or is influenced by** any fact in issue or relevant fact – whether **previous or subsequent** to it.

Point	Rule
Whose conduct	A party (plaintiff, defendant, accused) or his agent; the victim of the offence
Previous conduct	Threats, quarrels, lying in wait
Subsequent conduct	Absconding , destroying evidence, giving false explanations, pointing out the place where the body is hidden
Explanation 1 – statements	"Conduct" does not include mere statements , unless the statements accompany and explain acts other than statements
Explanation 2	When conduct is relevant, any statement made to the person or in his presence which affects such conduct is relevant

Illustrations:

1. A is accused of a crime. The fact that A **absconded** after receiving a letter warning him that inquiry was being made is relevant.
2. The question is whether A robbed B. The fact that, after the robbery, C said in A's presence, "The police are coming to look for the man who robbed B," and that **immediately afterwards A ran away**, is relevant.
3. The question is whether A was raped. The fact that, **shortly after the alleged rape, she made a complaint** relating to the crime, the circumstances under which and the terms in which it was made, are relevant. The fact that she **said** she had been raped, **without making a complaint**, is **not** relevant as conduct under this section (though it may be relevant as a dying declaration or as corroboration under S. 160).

Complaint v statement: A **complaint** is made with a view to **redress or punishment** to someone in authority or a person expected to help; a mere **narration** is a statement. A complaint is conduct; a bare statement is not.

Cases:

Case	Holding
<i>Queen-Empress v Abdullah</i> (1885, Allahabad HC – Full Bench)	A girl whose throat was cut could not speak; she answered questions by signs of her hand . The signs were admissible – as conduct and as a dying declaration .
<i>Prakash Chand v State (Delhi Administration)</i> (1979, SC)	The conduct of an accused in pointing out places or producing articles during investigation is admissible under S. 8, even if his statement to the police is barred.
<i>A.N. Venkatesh v State of Karnataka</i> (2005, SC)	The accused pointing out the place where the dead body was buried is admissible as conduct under S. 8, whether or not the statement falls within S. 27.

Absconding by itself is **weak** evidence – even an innocent person may run away out of fear (*Matru v State of U.P.*).

Conspiracy

1. The Section

S. 8, BSA (old S. 10): Where there is **reasonable ground to believe** that **two or more persons have conspired together** to commit an **offence or an actionable wrong**, **anything said, done or written by any one of such persons in reference to their common intention, after the time when such intention was first entertained** by any one of them, is a relevant fact **as against each of the persons** believed to be so conspiring – both for proving the **existence of the conspiracy** and for showing that **any such person was a party** to it.

2. Basis

The rule is based on the **theory of agency** – each conspirator is the **agent of the others** in carrying out the common design. Conspiracies are hatched in **secrecy**; direct evidence is rare – so the law admits the acts and statements of each against all.

3. Conditions

1. There must be **prima facie evidence** giving **reasonable ground to believe** that two or more persons are members of a conspiracy;
2. The thing said, done or written must be by **one of the conspirators**;
3. It must be **in reference to their common intention**;
4. It must be **after the common intention was first entertained** by any of them;
5. It is then relevant **against the others** – not in their favour.

Illustration: Reasonable ground exists for believing that A has joined a conspiracy to wage war against the State. The facts that **B procured arms in Europe, C collected money in Kolkata, D persuaded persons to join in Mumbai, E published writings in Agra, and F transmitted the money to G abroad, and the contents of a letter written by H** giving an account of the conspiracy, are each relevant – both to prove the conspiracy and A's complicity – **although A may not have known all of them**, and although the acts took place **before he joined or after he left it**.

4. Leading Cases

Case	Holding
Mirza Akbar v King-Emperor (1940, PC)	Statements made by a conspirator after the conspiracy has ended (e.g., after the offence is committed or after arrest) are not admissible against the others. "Common intention" means an intention existing at the time the thing was said, done or written. A woman's statement to a Magistrate after arrest was excluded.
Badri Rai v State of Bihar (1958, SC)	S. 10 is based on agency; an offer of a bribe by one conspirator in furtherance of the conspiracy was admissible against the other.
Sardul Singh Caveeshar v State of Bombay (1957, SC)	Evidence of acts outside the period of the conspiracy is not within S. 10, though it may be relevant under other sections.
Kehar Singh v State (Delhi Administration) (1988, SC)	(Indira Gandhi assassination case.) Before S. 10 applies, there must be prima facie evidence of the conspiracy; then acts and statements of one are admissible against all.
State (NCT of Delhi) v Navjot Sandhu (2005, SC)	(Parliament attack case.) A confession made by a conspirator after arrest is not "in reference to the common intention" – it cannot be used against co-conspirators under S. 10.
CBI v V.C. Shukla (1998, SC)	(Jain hawala diaries.) Entries in loose sheets were not enough; S. 10 needs independent prima facie evidence of conspiracy first.

Point	English law	Indian law (S. 8 BSA)
Phrase	Acts " in furtherance of " the common design	Acts " in reference to " the common intention – wider words
After the conspiracy ends	Not admissible	Not admissible (<i>Mirza Akbar</i>)

When Facts Not Otherwise Relevant Become Relevant

1. The Section

S. 9, BSA (old S. 11): Facts not otherwise relevant are relevant –

1. if they are **inconsistent** with any fact in issue or relevant fact; or
2. if, by themselves or in connection with other facts, they make the existence or non-existence of any fact in issue or relevant fact **highly probable or improbable**.

2. Illustrations

1. The question is whether A committed a crime at **Chennai** on a certain day. The fact that on that day A was at **Ladakh** is relevant. (**Alibi**)
2. The question is whether A committed a crime. The circumstances are such that the crime must have been committed by **A, B, C or D**. Every fact which shows that the crime could have been committed by no one else, and that it was **not committed by B, C or D**, is relevant.

3. What the Section Covers

Head	Example
Alibi ("elsewhere")	The accused was in another town at the time
Non-access of the husband	To disprove paternity
Survival of the alleged deceased	The person said to be murdered is alive
Commission by a third person	Someone else did it
Self-harm / suicide of the deceased	In a murder charge

4. Plea of Alibi – Rules

1. The **burden of proving alibi is on the accused** (S. 106, BSA – old S. 103) – but only **after** the prosecution has proved his presence at the scene by reliable evidence.
2. The alibi must show that it was **impossible** for the accused to be at the scene – the distance must be such that he **could not have reached** the place (*Dudh Nath Pandey v State of U.P.*, 1981; *Binay Kumar Singh v State of Bihar*, 1997).
3. It should be raised at the **earliest opportunity**.
4. A **failed** alibi does not prove guilt; a **false** alibi may be an additional circumstance.

5. Limits

S. 9 is **very wide**, but it is **controlled by the other sections** – it cannot be used to bring in **hearsay** or evidence which other sections exclude. The fact must be closely connected and make the main fact **"highly"** probable or improbable – not merely slightly so.

Right and Custom

1. The Section

S. 11, BSA (old S. 13): Where the question is as to the **existence of any right or custom**, the following facts are relevant –

1. any **transaction** by which the right or custom in question was **created, claimed, modified, recognised, asserted or denied**, or which was inconsistent with its existence; and
2. **particular instances** in which the right or custom was **claimed, recognised or exercised**, or in which its exercise was **disputed, asserted or departed from**.

Illustration: The question is whether A has a right to a **fishery**. A **deed** conferring the fishery on A's ancestors, a **mortgage** of the fishery by A's father, a later **grant** by A's father irreconcilable with the mortgage, and **particular instances** in which A's father exercised the right or in which its exercise was stopped by A's neighbours, are relevant.

2. Points

1. **Right** – includes all rights – public, private, corporeal and incorporeal (ownership, easements, right of way, right to office).
2. **Custom** – a rule which, by **long and uniform usage**, has obtained the **force of law** in a family, class or locality. A valid custom must be **ancient, certain, reasonable, continuous** and **not opposed to public policy** or statute.
3. **Proof of custom** – by **instances, judgments** recognising it (S. 36 – old S. 42), **opinions** of persons likely to know (S. 42 – old S. 48), and **statements of deceased persons** (S. 26(d)). The burden is on the person who sets up the custom.
4. **Judgments** not *inter partes* are admissible under this section as "**transactions**" or "**instances**" in which the right was asserted – though they are not binding.

Facts Showing the State of Mind, Body or Bodily Feeling

1. The Section

S. 12, BSA (old S. 14): Facts showing the existence of any **state of mind** – such as **intention, knowledge, good faith, negligence, rashness, ill-will or goodwill** towards any particular person – or showing the existence of any **state of body or bodily feeling**, are relevant, when the existence of such state of mind or body or bodily feeling is **in issue or relevant**.

Explanation 1: The fact must show that the state of mind exists **not generally, but in reference to the particular matter in question**.

Explanation 2: Where the **previous commission of an offence** by the accused is relevant under this section, the **previous conviction** is also a relevant fact.

2. Illustrations

Illustration	State of mind shown
A is accused of receiving stolen goods knowing them to be stolen. That he was in possession of many other stolen articles at the same time is relevant	Knowledge
A is accused of delivering a counterfeit coin . That he possessed a number of other counterfeit coins is relevant	Knowledge and fraudulent intent
A sues B for damage done by B's dog. That the dog had previously bitten X, Y and Z and that they complained to B is relevant	Knowledge of the dog's ferocity
A is accused of defaming B. Previous publications by A showing ill-will towards B are relevant	Malice
A is tried for the murder of B. That A previously shot at B is relevant	Intention
The question is whether A's death was caused by poison. Statements made by A during his illness as to his symptoms are relevant	Bodily feeling

3. General Tendency Not Enough

The fact that a man **generally** has a habit of shooting at people is **irrelevant**; the fact that he had earlier shot at **the same victim** is relevant. Evidence of mere **bad character or general disposition** is excluded (see Ss. 46–50).

4. Related Sections

Section	Rule	Example
S. 13 (old 15)	Accident or intention – when the question is whether an act was accidental or intentional , the fact that it formed part of a series of similar occurrences , in each of which the person doing the act was concerned, is relevant	A is accused of burning his house to get insurance money. That A lived in several houses successively, each of which caught fire, and after each A received payment from a different insurer, is relevant. <i>R v Smith (1915)</i> – the "Brides in the Bath" case; <i>Makin v Attorney-General for New South Wales (1894, PC)</i> – bodies of several infants found buried in the houses of baby-farmers
S. 14 (old 16)	Course of business – when the question is whether a particular act was done, the existence of a course of business according to which it naturally would have been done is relevant	Whether a letter was posted – that it was put in the usual place and letters put there were ordinarily carried to the post
S. 10 (old 12)	In suits for damages , any fact which helps the court to determine the amount is relevant	–

Easy rule – similar facts: General bad character is out. But similar acts are in when they prove knowledge, intention or system in the very matter in issue (Ss. 12, 13).

Quick Revision – Section Tables, Comparisons and Latest Cases

Old and New Section Numbers – Complete Ready Reckoner

Subject	IEA, 1872	BSA, 2023
Definitions – evidence, fact, document, proved, presumptions	3, 4	2
Evidence of facts in issue and relevant facts	5	3
Res gestae	6	4
Occasion, cause, effect	7	5
Motive, preparation, conduct	8	6
Explanatory / introductory facts; identity (TIP)	9	7
Conspiracy	10	8
Inconsistent facts; alibi	11	9
Right and custom	13	11
State of mind, body	14	12
Accident or intention	15	13
Admission defined	17	15
Who may make admissions	18–20	16–18
Proof of admissions	21	19
Admissions in civil cases (without prejudice)	23	21
Confession by inducement, threat, coercion, promise	24, 28, 29	22
Confession to police; in custody; discovery	25, 26, 27	23
Confession of co-accused	30	24
Admissions not conclusive	31	25
Dying declaration and statements of persons not available	32	26
Evidence in former proceedings	33	27
Books of account; public records	34, 35	28, 29
Judgments	40–44	34–38
Expert opinion	45, 45A	39
Handwriting opinion	47	41

Subject	IEA, 1872	BSA, 2023
Opinion on relationship	50	44
Character	52-55	46-50
Judicial notice; admitted facts	56-58	51-53
Oral evidence; direct	59, 60	54, 55
Primary and secondary evidence	62, 63, 65	57, 58, 60
Electronic records	65A, 65B	61 (new), 62, 63
Proof of attested documents	68-72	67-71
Comparison of handwriting by court	73	72
Public documents	74-78	74-77
Presumptions as to documents	79-90A	78-93
Thirty-year-old documents	90	92
Exclusion of oral by documentary evidence	91, 92	94, 95
Ambiguities	93-98	96-101
Burden of proof	101-104	104-107
Burden – general exceptions	105	108
Facts especially within knowledge	106	109
Presumption of death	107, 108	110, 111
Legitimacy	112	116
Abetment of suicide by married woman	113A	117
Dowry death	113B	118
Court may presume	114	119
Absence of consent in rape	114A	120
Estoppel	115-117	121-123
Who may testify	118	124
Communications during marriage	122	128
Affairs of State	123	129
Professional communications	126-129	132-134
Incriminating answers	132	137
Accomplice	133	138

Previous Year Questions and Answers

How to Write Answers in the Exam

- **Always cite both sections** – "S. 26(a), BSA (old S. 32(1), Evidence Act)". The syllabus asks for a **comparative study** wherever necessary.
- **Part A (4 marks):** section number (new + old) → **definition or rule in one sentence** → 2–3 essentials → **one illustration** → **one case**.
- **Part B (10 marks):** introduction (meaning and reason for the rule) → **the section** → **essentials** (numbered) → **illustrations** from the Act → **exceptions** → **leading cases** (4–5) → **evidentiary value** → **change made by the BSA**, if any → conclusion.
- **Problems: FILAC** – (i) identify the **kind of statement or evidence** (confession? admission? dying declaration? secondary evidence?); (ii) state the **section and its conditions**; (iii) apply the **leading case**; (iv) say clearly whether it is **relevant/admissible** and **what weight** it carries.

Short Answer Questions (4 Marks)

1. Evidence

S. 2(1)(e), BSA (old S. 3) – **oral evidence** (statements of witnesses, including statements given electronically) and **documentary evidence** (documents, including electronic or digital records, produced for inspection). Kinds – direct, circumstantial, primary, secondary, hearsay, real.

2. Fact and Fact in Issue

Fact (S. 2(1)(f)) – anything perceived by the senses (physical) or any mental condition of which a person is conscious (psychological). **Fact in issue (S. 2(1)(g))** – a fact from which the existence, non-existence, nature or extent of a right or liability asserted or denied necessarily follows.

3. Document

S. 2(1)(d) – any matter expressed, described or recorded on any substance by letters, figures or marks, intended to be used for recording that matter – **includes electronic and digital records** (emails, server logs, messages, websites, locational evidence, voice mail).

4. Proved, Disproved, Not Proved

Proved – the court believes the fact to exist or considers it so probable that a **prudent man** would act on it. **Disproved** – the reverse. **Not proved** – neither proved nor disproved. Civil – preponderance of probabilities; criminal – beyond reasonable doubt.

5. May Presume, Shall Presume, Conclusive Proof

May presume – discretionary, rebuttable (S. 119). **Shall presume** – mandatory, rebuttable (S. 118).

Conclusive proof – mandatory, irrebuttable (S. 116 – legitimacy; S. 35 – judgments in rem).

6. Relevancy and Admissibility

Relevancy – **logical** connection declared by Ss. 4–50; admissibility – **legal** permission to give the evidence. All admissible evidence is relevant; all relevant evidence is not admissible (*Ram Bihari Yadav*). E.g., confession to police – relevant but inadmissible.

7. Res Gestae

S. 4 (old S. 6) – facts forming **part of the same transaction** are relevant, whether at the same time and place or not. Statements must be **spontaneous and contemporaneous**. *R v Bedingfield*; *Ratten v R*; *Gentela Vijayavardhan Rao*; *Sukhar*.

8. Motive, Preparation and Conduct

S. 6 (old S. 8) – motive (reason for the act), preparation (arranging means), previous and subsequent **conduct** of a party or victim are relevant. Statements are conduct only if they **accompany and explain acts**. Complaint v statement. *Queen-Empress v Abdullah*.

9. Conspiracy

S. 8 (old S. 10) – where there is **reasonable ground to believe** in a conspiracy, anything **said, done or written** by one conspirator **in reference to the common intention**, after it was first formed, is relevant against all. Not after the conspiracy ends – *Mirza Akbar*; *Navjot Sandhu*.

10. Plea of Alibi

S. 9 (old S. 11) – facts **inconsistent** with a fact in issue. The accused was **elsewhere**. Burden on the accused (S. 106); must show it was **impossible** for him to be at the scene – *Dudh Nath Pandey*; *Binay Kumar Singh*.

11. Test Identification Parade

Held under S. 7 (old S. 9) to test a witness's ability to identify the suspect. **Not substantive** evidence; corroborates identification in court. *Matru v State of U.P.*; *Malkhansingh*.

12. Admission

S. 15 (old S. 17) – a statement, oral, documentary or electronic, suggesting an inference as to a fact in issue or relevant fact, made by a party or persons in Ss. 16–18. Relevant **against** the maker (S. 19); **not conclusive** but may estop (S. 25).

13. Confession

Not defined. A statement by an accused **admitting the offence or substantially all the facts** constituting it – *Pakala Narayana Swami*. Judicial and extra-judicial. Must be **voluntary** (S. 22). To police – inadmissible (S. 23).

14. Extra-Judicial Confession

Made outside court, to a private person. **Weak** evidence; must be voluntary, made to a person who inspires confidence, and proved by reliable testimony; corroboration desirable. *Sahoo v State of U.P.* – soliloquy.

15. Retracted Confession

A confession later withdrawn. Can be acted on if **voluntary and true**; prudence requires **corroboration** in material particulars – *Pyare Lal Bhargava v State of Rajasthan*.

16. Confession to a Police Officer

S. 23(1) (old S. 25) – cannot be proved against the accused. Reason – fear of **torture**. "Police officer" – one with power to investigate and file a charge-sheet (*Tofan Singh* – NDPS officers). Confessional FIR – *Aghnoo Nagesia*.

17. Discovery Statement

Proviso to S. 23(2) (old S. 27) – so much of the information given by an accused **in police custody** as **relates distinctly to the fact discovered** may be proved. *Pulukuri Kottaya* – place and knowledge; not past use of the weapon.

18. Confession of Co-accused

S. 24 (old S. 30) – in a **joint trial for the same offence**, a confession by one affecting himself and others **may be taken into consideration** against the others. Very weak – *Bhuboni Sahu*; *Kashmira Singh*; *Haricharan Kurmi*.

19. Dying Declaration

S. 26(a) (old S. 32(1)) – statement by a person as to the **cause of his death** or the **circumstances of the transaction** resulting in death. No expectation of death needed; civil or criminal. Can be the **sole basis** of conviction – *Khushal Rao*; *Laxman*.

20. Evidence in Former Proceedings

S. 27 (old S. 33) – evidence of a witness who is dead or unavailable, given in an earlier judicial proceeding, is relevant if – **same parties, opportunity to cross-examine, same issues**.

21. Judgment in Rem

S. 35 (old S. 41) – a final judgment in **probate, matrimonial, admiralty or insolvency** jurisdiction conferring or taking away a **legal character** – **conclusive** against the world.

22. Expert Opinion

S. 39 (old S. 45) – opinions of persons **specialty skilled** in foreign law, science, art, **any other field**, handwriting or finger impressions are relevant. **Advisory**, not binding; weak evidence – *Magan Bihari Lal*; *Murari Lal*.

23. Opinion as to Handwriting

S. 41 (old S. 47) – opinion of a person **acquainted** with the handwriting (saw him write; received documents; ordinary course of business). Also expert (S. 39) and comparison by court (S. 72).

24. Proof of Marriage

S. 44 (old S. 50) – opinion expressed **by conduct** of persons with special knowledge (treated as husband and wife). Not sufficient in **bigamy** – ceremonies must be strictly proved (*Bhaurao Lokhande*; *Kanwal Ram*). Long cohabitation – *Badri Prasad*.

25. Judicial Notice

Ss. 51, 52 (old Ss. 56, 57) – facts the court accepts **without proof** – laws of India, treaties, proceedings of legislatures, seals of courts, public holidays, territory of India, hostilities, names of advocates, rule of the road.

26. Hearsay Evidence

Evidence of what the witness **heard from another**. Excluded by **S. 55** (old S. 60) – oral evidence must be **direct**. Exceptions – res gestae, admissions, dying declarations, evidence in former proceedings, public records.

27. Primary and Secondary Evidence

Primary (S. 57) – the document itself; now includes electronic files and records from proper custody.

Secondary (S. 58) – certified copies, mechanical copies, counterparts, oral accounts, admissions.

Secondary evidence only in cases under **S. 60**.

28. Electronic Record – Section 63 Certificate

S. 63 (old S. 65B) – computer output is admissible without the original if conditions are met and a **certificate** signed by the **person in charge and an expert** (with hash value, per the Schedule) is filed.

Mandatory – *Anvar; Arjun Panditrao*.

29. Public Documents

S. 74 – acts and records of sovereign authority, official bodies, tribunals and public officers; public records of private documents. Proved by **certified copies** (Ss. 75, 76). E.g., FIR, judgment, birth register.

30. Thirty-Year-Old Documents

S. 92 (old S. 90) – a document 30 years old produced from **proper custody** – the court **may presume** signature, handwriting, execution and attestation. Not the truth of contents. Electronic records – 5 years (S. 93).

31. Attested Documents – Proof

S. 67 (old S. 68) – a document required by law to be attested must be proved by **at least one attesting witness**, if alive and available. Not needed for registered documents (other than wills) unless execution is specifically denied.

32. Exclusion of Oral Evidence

S. 94 (old S. 91) – terms of a written contract, grant or disposition proved only by the document. **S. 95** (old S. 92) – no oral evidence to **contradict, vary, add to or subtract** – six provisos (fraud, silent matter, condition precedent, later modification, custom, relation to facts).

33. Patent and Latent Ambiguity

Patent – apparent on the face; oral evidence **not** allowed (Ss. 96, 97). **Latent** – arises when applied to facts; oral evidence **allowed** (Ss. 98–101).

34. Burden of Proof

S. 104 (old S. 101) – he who asserts must prove. **S. 105** – on the party who would fail if no evidence were given. Legal burden never shifts; onus shifts. Criminal – prosecution, beyond reasonable doubt (*Woolmington*).

35. Burden of Proving Exceptions

S. 108 (old S. 105) – the accused must prove the general or special exception; the court presumes its absence. Standard – **preponderance of probabilities** (*Dahyabhai; Nanavati*).

36. Facts Especially within Knowledge

S. 109 (old S. 106) – burden on the person who has special knowledge. Ticketless travel. Does not relieve the prosecution (*Shambu Nath Mehra*); last seen; death inside the house (*Trimukh Maroti Kirkan*).

37. Presumption of Death

S. 111 (old S. 108) – a person **not heard of for seven years** by those who would naturally have heard – burden shifts to the person asserting he is alive. No presumption as to **time** of death.

38. Presumption of Legitimacy

S. 116 (old S. 112) – birth during a valid marriage or within **280 days** of its dissolution is **conclusive proof** of legitimacy, unless **non-access** is shown. DNA – *Nandlal Badwaik; Aparna Firodia*.

39. Presumption as to Dowry Death

S. 118 (old S. 113B) – if soon before her death the woman was subjected to cruelty or harassment for dowry, the court **shall presume** dowry death (BNS S. 80). "Soon before" – proximate and live link (*Kans Raj; Satbir Singh*).

40. Section 119 (old Section 114)

Court **may presume** facts likely to have happened in the common course of events – recent possession of stolen goods; accomplice unworthy of credit; official acts regularly done; **adverse inference** from withholding evidence.

41. Estoppel

S. 121 (old S. 115) – a person who by declaration, act or omission **intentionally causes another to believe** a thing and act on it cannot deny its truth. *Pickard v Sears; Sarat Chunder Dey*. No estoppel against statute or minor.

42. Promissory Estoppel

A clear promise as to the **future**, intended to be acted on and acted on, binds the promisor – even the **Government**. *High Trees; Anglo Afghan Agencies; Motilal Padampat Sugar Mills*. Not against statute or overriding public interest.

43. Estoppel of Tenant

S. 122 (old S. 116) – a tenant cannot, during the tenancy or thereafter, deny that the landlord had **title at the beginning** of the tenancy; a licensee cannot deny the licensor's title to possession.

44. Waiver

Intentional relinquishment of a known right. Requires knowledge and intention. Contractual in nature; differs from estoppel (*Provash Chandra Dalui*). Fundamental rights cannot be waived (*Basheswar Nath*).

45. Competency of Witnesses

S. 124 (old S. 118) – **all persons** are competent unless unable to understand questions or give rational answers due to tender years, old age, disease. **Child witness** – no minimum age; *Rameshwar; Balveer Singh (2025)*.

46. Dumb Witness

S. 125 (old S. 119) – may give evidence by **writing or signs** in open court – deemed oral evidence; interpreter or special educator; videography.

47. Privileged Communications between Spouses

S. 128 (old S. 122) – communications **during marriage** cannot be disclosed without the consent of the spouse who made them; exceptions – suits between spouses, crimes against each other. Acts not covered – *Ram Bharosey; M.C. Verghese*.

48. Professional Communications

S. 132 (old S. 126) – an advocate shall not disclose client communications, documents or advice without the client's **express consent**. Exceptions – **illegal purpose**; crime or fraud **since commencement** of service.

49. Affairs of State

S. 129 (old S. 123) – unpublished official records relating to affairs of State cannot be given in evidence without permission of the head of the department. Court may inspect – *Raj Narain; S.P. Gupta*.

50. Accomplice

S. 138 (old S. 133) – a competent witness; conviction on **corroborated** testimony is legal. **S. 119 ill. (b)** – unworthy of credit unless corroborated in material particulars. *Baskerville; Sarwan Singh; Bhiva Doulu Patil*.

51. Leading Questions

S. 146 (old Ss. 141–143) – a question **suggesting the answer**. Not allowed in **chief or re-examination** if objected to, except introductory or undisputed matters; **allowed in cross-examination**. *Varkey Joseph*.

52. Hostile Witness

S. 157 (old S. 154) – the court may permit a party to **cross-examine his own witness**. Evidence is **not wiped out** – reliable part may be used (*Sat Paul; Khujji*).

53. Impeaching Credit of Witness

S. 158 (old S. 155) – by (a) witnesses who believe him **unworthy of credit**; (b) proof of **bribe** or corrupt inducement; (c) **former inconsistent statements**.

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